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File No.: EXP202404691

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection, and upon noticing indications of a possible breach of the regulations within the scope of the competencies of the Spanish Agency for Data Protection, actions were initiated under file number EXP202401777. The complaint was admitted for processing on February 2, 2024.

SECOND: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to the control authorities in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (LOPDGDD hereinafter).

In the context of the investigative actions, a request for information was sent twice to AECORP 005, S.L., with NIF B05470380, regarding the complaint indicated in the first section, requesting that, within ten business days, it submit to this Agency the information and documentation specified.

THIRD: The request for information, which was notified on both occasions in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic means, was received by AECORP 005, S.L. on February 16 and March 5, 2024, as evidenced by the acknowledgments of receipt in the file.

FOURTH: Regarding the requested information, AECORP 005, S.L. did not submit a response to this Spanish Agency for Data Protection within the deadlines granted for this purpose.

FIFTH: According to the report obtained from the AXESOR tool, the entity AECORP 005, S.L. is an SME, established in 2021, with a business volume of ***AMOUNT.1 euros in 2022.

SIXTH: On April 12, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against AECORP 005, S.L., for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

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The aforementioned initiation agreement was received by AECORP 005, S.L. on April 13, 2024, as evidenced by the acknowledgment of receipt in the file.

SEVENTH: On May 23, 2024, and with entry registration number REGAGE24e00037807839, AECORP 005, S.L. submitted a written response to the request for information made in the context of file EXP202401777. Regarding the subject of the current sanctioning procedure, AECORP 005, S.L. states that “in light of the initiation agreement of the sanctioning file, it has verified the aforementioned notifications and has been able to confirm that it has indeed not complied; however, this fact has occurred due to a significant error on the part of this company, entirely involuntarily, as our intention has never been to conceal information or not cooperate; on the contrary, in compliance with our obligations, we always respond to requests with all the information we have.”

Finally, AECORP 005, S.L. requests “that this written submission and the documents attached to it be considered as presented in a timely manner, and that the request made to this party be deemed attended to, in order to show cooperation in the referenced file.”

EIGHTH: On November 8, 2024, a proposal for resolution was formulated, proposing that the Director of the Spanish Agency for Data Protection sanction AECORP 005, S.L. for an infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR, with a fine of 6,000.00 euros.

Additionally, the procedure was disclosed so that within ten days AECORP 005, S.L. could present any arguments it deemed appropriate in its defense and submit any documents and information it considered pertinent, in accordance with Article 89.2 of the LPACAP.

NINTH: The proposal for resolution was notified in accordance with the provisions established in the LPACAP through electronic notification, being received by AECORP 005, S.L. on November 12, 2024, as evidenced by the acknowledgment of receipt in the file.

After the ten business days granted in the proposal for resolution for the submission of allegations, AECORP 005, S.L. has not presented any allegations.

In view of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven in the present procedure,

PROVEN FACTS

FIRST: The request for information indicated in the second and third backgrounds was notified in accordance with the provisions of the LPACAP.

SECOND: AECORP 005, S.L. has not responded to the request for information made by this Agency in the context of the investigative actions of the

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file EXP202401777 prior to the issuance of the initiation agreement of the present sanctioning procedure.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations to the initiation agreement

In response to the actions taken by AECORP 005, S.L. in response to the information request, the following should be noted.

The response to the information request provided during the instruction of this procedure does not affect the existence of the proven facts constituting an infringement.

Regarding the assertion of lack of voluntariness, this does not exempt responsibility in this case.

Certainly, the principle of responsibility provided for in Article 28.1 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, states that: "Only individuals and legal entities may be sanctioned for acts constituting administrative infringements, as well as, when a law recognizes their capacity to act, the groups of affected individuals, unions, and entities without legal personality and independent or autonomous assets, that are found responsible for them by way of intent or fault."

However, according to the ruling in STS 7887/2011 of November 24, 2011, Rec. 258/2009, "(...) since its ruling 76/1990, of April 26, the Constitutional Court has declared that objective or faultless responsibility is not applicable in the administrative sanctioning field, a doctrine that is reaffirmed in ruling 164/2005, of June 20, 2005, whereby the possibility of imposing sanctions solely based on the result, without proving a minimum level of culpability even in terms of mere negligence, is excluded. However, the way of attributing responsibility to legal entities does not correspond to the forms of culpability that are imputable to human conduct."

Thus, in the case of infringements committed by legal entities, although the element of culpability must be present (see the ruling of this Chamber of the Supreme Court of November 20, 2011, cassation

48/2007), it is necessarily applied differently than it is for individuals. According to STC 246/1991 "(...) this different construction of the attribution of authorship of the infringement to the legal entity arises from the very nature of the legal fiction to which these subjects respond. They lack the volitional element in the strict sense, but not the capacity to infringe the rules to which they are subject. The capacity to infringe and, therefore, the direct reproachability that derives from the legal good protected by the norm that is infringed and the necessity for that protection to be truly effective, and the risk that, consequently, must be assumed by the legal entity that is subject to compliance with that norm." To the above, it should be added, following the ruling of January 23, 1998, partially transcribed in STS 6262/2009, of October 9, 2009, Rec 5285/2005, and STS 6336/2009, of October 23, 2009, Rec 1067/2006, that "although the culpability of the conduct must also be subject to proof, it must be considered in terms of the assumption of the corresponding burden, that ordinarily the volitional and cognitive elements necessary to appreciate it form part of the proven typical conduct, and that their exclusion requires proof of the absence of such elements, or in its normative aspect, that the diligence required by the one claiming its non-existence has been exercised; in short, the mere invocation of the absence of fault is not sufficient for exculpation against a typically unlawful behavior."

In this context, none of the circumstances present in the case allow for the exclusion of this subjective element of the infringement.

Regarding the information communicated, this Agency acknowledges receipt of it, without this declaration implying any pronouncement on it.

III

Unfulfilled obligation

In light of the facts presented, it is considered that AECORP 005, S.L. has not provided the information requested by the Spanish Data Protection Agency within the deadlines granted for that purpose.

With the aforementioned conduct of AECORP 005, S.L., the investigative power conferred to supervisory authorities by Article 58.1 of the GDPR, in this case, the AEPD, has been obstructed. Therefore, the facts described in the section "Proven Facts" are deemed to constitute an infringement, attributable to AECORP 005, S.L., for violation of Article 58.1 of the GDPR, which states that each supervisory authority shall have, among its investigative powers:

"a) to order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information required for the performance of its tasks."

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IV

Classification and Qualification of the Infraction

The facts presented are considered constitutive of an infraction, attributable to AECORP 005, S.L. This infraction is classified under Article 83.5.e) of the GDPR, which defines it as: "failure to provide access in violation of Article 58, paragraph 1."

The same article establishes that this infraction may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of a company, an amount equivalent to four percent (4%) of the total annual global turnover of the previous financial year, opting for the higher amount.

For the purposes of the statute of limitations for infractions, the infraction attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

"ñ) Failure to provide access to personal data, information, premises, equipment, and processing means required by the competent data protection authority for the exercise of its investigative powers."

V

Imposed Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned

Article 83.2 of the GDPR. Furthermore, to ensure a consistent application of the GDPR, the Guidelines 04/2022 issued by the European Data Protection Board on the calculation of fines under the GDPR must be taken into consideration.

In light of the facts presented, it is considered appropriate to impose a sanction on AECORP 005, S.L. for the violation of Article 58.1 of the GDPR classified under Article 83.5 e) of the GDPR. The sanction to be imposed is an administrative fine in the amount of €6,000.00.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on AECORP 005, S.L., with NIF B05470380, for an infraction of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €6,000.00 (SIX THOUSAND euros).

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SECOND: TO NOTIFY this resolution to AECORP 005, S.L.

THIRD: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the enforceability date falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also inform the Agency of the C/ Jorge Juan, 6

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Documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the precautionary suspension to be concluded.

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